

ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE
JUDICIAL DEPARTMENT

WP No. 25101 of 2026

Muhammad Basharat Raja
vs
Additional Rent Controller, etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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28.04.2026 Sardar Muhammad Ramzan, Mr. Asif Mahmood Cheema and Naseer Ahmad Jaura, Advocates.
Mr. Qamar Hanif Ramay, Assistant Attorney General for Pakistan, Syed Hassan Abbas Raza, Syed Imran Ehsan, Ch. Imtiazullah Warraich, Sh. Waseem Ahmed, Aitzaz Aslam Chaudhry, Syed Muhammad Haider Kazmi, Muhammad Abu Bakar Attique, Syed Nadeem Anwar Naqvi, Mirza Shahryar Farhan Baig, Faisal Anwar Minhas, Dr. Muhammad Azeem Raja, Syed Ali Allow-u-Din, Malik Ali Raza Khokhar, Mian Muhammad Nadeem, Sabahat Riaz, Syed Sabahat Hamdani, Ch. Mateen-ul-Haq, M. Haris Jutt and Malik Muhammad Zareef, Advocates
Mr. Qamar Zaman Qureshi, Additional Advocate General, Punjab.

The petitioner, Muhammad Basharat Raja, who was the respondent in ejectment petition filed against him by the respondent No. 2, Mrs. Izmeen Adeel Bajwa through her General Attorney Haider Ali Bukhari, is aggrieved of closure of his right to lead evidence through order dated 25.03.2026 (**‘impugned order’**) passed by the learned Additional Rent Controller, Lahore Cantonment, Lahore/ Respondent No. 1 (**‘Rent Controller’**).

2. The learned counsel for the petitioner states that the petitioner could not appear in the court of learned Rent Controller due to circumstances beyond his control as he had to appear before the Peshawar High Court to obtain transitory pre-arrest bail in a criminal matter and a copy of order dated 25.03.2026 passed by the Peshawar

High Court is attached with this petition in support of petitioner's claim and the learned counsel for the petitioner had to appear in other courts, hence could not appear in the present case, whereas two witnesses of the petitioner were available on the said date who could be cross-examined, yet the court despite the same closed the right of petitioner to lead evidence for failure to produce petitioner's witnesses for cross examination without any legal justification and in view thereof it is claimed that the petitioner should be allowed another opportunity to lead evidence by producing his witnesses for cross examination.

3. Brief facts of the case are that the respondent No. 2 filed an ejectment petition against the petitioner by alleging that the petitioner is a tenant of House No. 48-B (Eastern Portion), Tufail Road, Lahore, earlier as tenant of father of the respondent No.2 namely Ch. Nusrat Ali and after his death as tenant of respondent No.2 at a Rent of Rs.1,00,250/- per month with 10% annual increase and was a defaulter in payment of rent since July, 2014. The petitioner contested the said petition by claiming that he was not a tenant rather Ch. Nusrat Ali, the father of the respondent No. 2 being owner of the house entered into an agreement to sell dated 27.11.2015 in respect of the said house with Mst. Agha Pari Gull wife of the petitioner for sale consideration of Rs.2,40,00,000/-, out of which he had received Rs.80,00,000/- as earnest money. Later on Ch. Nusrat Ali Received Rs.60,00,000/- on 16.01.2016 and handed over the original documents and possession of suit property to Mst. Agha Pari Gull but before execution of sale deed he died on 26.02.2016 and the legal heirs refused to abide by the agreement resulting in filing of suit for specific performance of agreement to sell. On the basis of divergent stance of the parties in the ejectment petition, issues were framed and while recording his evidence in defence of the ejectment

petition, petitioner submitted his own affidavit and affidavits of his two witnesses, however, on 25.03.2026 the evidence of the petitioner has been closed due to non-appearance of the petitioner and his counsel, whereas his other two witnesses were available in the court.

4. The impugned order, whereby the right of the petitioner to produce evidence has been closed, is reproduced below:

آواز دلوائی گئی۔ کونسل سائل حاضر۔ مسئلہ علیہ محمد بشارت راجہ غیر حاضر، گواہ مسئلہ علیہ عاشق حسین و تصور حسین حاضر۔ عاشق حسین بیانی ہے کہ کونسل مسئلہ علیہ عدالتی مصروفیات کی بنا پر عدالت حاضر نہ آسکے ہیں۔ مہلت کی استدعا کرتا ہے کونسل سائل بیانی ہے کہ سابقہ تاریخ پر بجائے کونسل جام خالد نے بیان دیا تھا کہ سنیتر کونسل سردار محمد رمضان ایڈووکیٹ مقررہ تاریخ پر ضرور پیش ہونگے بصورت دیگر میں خود اپنا وکالت نامہ داخل کر کے شہادت مکمل کرواؤنگا جسکی یقین دہانی پر التواء دیا گیا اس کے باوجود مسئلہ علیہ محمد بشارت راجہ غیر حاضر ہیں اور کونسل مسئلہ علیہ بھی عدالت حاضر نہ آئے ہیں اور ایک سال سے زائد عرصہ گزرنے کے باوجود شہادت مکمل نہ کروائی ہے لہذا مسئلہ علیہ کا حق شہادت کو ختم کیا جائے۔

مثلاً ملاحظہ کرنے کے بعد عدالت اس نتیجہ پر پہنچی ہے کہ مسئلہ علیہ نے مورخہ 20.11.2024 کو بیانات حلفی داخل کیے اور کیس جرح بر گواہان مسئلہ علیہ 04.12.2024 کے لیے مقرر ہوا اور مسئلہ علیہ کو متعدد بار جرح بر گواہان کے لیے مواقع فراہم کیے گئے لیکن مسئلہ علیہ جرح بر گواہان کے لیے پیش نہ ہوئے ہیں لہذا مندرجہ بالا حقائق کی روشنی میں مسئلہ علیہ محمد بشارت راجہ کا حق شہادت ختم کیا جاتا ہے۔ مثلاً برائے بحث مقرر 22.04.2026 پیش ہوئے۔

5. The perusal of the said order shows that the learned Rent Controller closed the right of the petitioner to lead evidence as he had not got recorded statement by presenting his witnesses for cross examination despite passing of more than one year as on the fateful day neither he nor his counsel was available in the court premises.

6. In support of his stance that petitioner could not appear in the court due to circumstances beyond his control as he had to attend Peshawar High Court in connection with bail application bearing Crl. Misc.(TBA) No. 893-P-2026. The petitioner has placed on record the bail granting order dated 25.03.2026 passed by the Chief Justice of the Peshawar High Court, whereby he had been admitted to pre-arrest transit bail till 30.03.2026 in case FIR No. 897 dated 25.11.2024 registered with Police Station Hazro, District Attock under sections 7, 21-I ATA, 1997 read with sections 395 / 353 / 186 / 341 / 148 / 149 / 188 / 324 / 109 / 440 / 152 / 153 / 153-A / 505 /

290 / 291 / 143 / 145 / 117 / 150 PPC to enable him to approach the Lahore High Court, Rawalpindi Bench, Rawalpindi for grant of bail. Besides it is also claimed that the learned counsel for the petitioner could not personally appear as he had to appear in some other cases. However, it is mentioned in the impugned order that in the present case, two witnesses Ashiq Hussain and Tassawar Hussain were available in the court and Ashiq Hussain had informed the learned Rent Controller that the counsel had to appear in other courts and adjournment may be granted. It is also claimed that the learned Rent Controller had also been informed that the petitioner himself has also to appear in Peshawar High Court for grant of bail but the said aspect of the matter perhaps was inadvertently not noted in the impugned order.

7. As the petitioner had to appear before the Peshawar High Court on 25.03.2026 for the purpose of getting pre-arrest transit bail to approach Rawalpindi Bench of the Lahore High Court, therefore, due to circumstances beyond his control, he could not be expected to appear in the court of the learned Rent Controller, Lahore Cantonment at the same time as asking him to do so would be asking him to be available at two different places at the same time which would amount to performing an impossible act, which is not the intention of law as the same would be absurdity. Reliance may be placed on the judgment reported as **Pakistan Kuwait Investment Company (Pvt.) Limited through Authorized Representative versus Messrs Active Apparels International and 6 others** (2012 CLD 1036 Sindh).

8. In view of the compelling circumstances, when the petitioner was appearing in the Peshawar High Court on the same day and probably at the same time, his non-appearance before the learned Rent Controller could not

be treated as contumacious. Even otherwise, in a case reported as **Salamat Bibi and others versus Settlement and Rehabilitation Commissioner, Multan** (PLD 1966 Supreme Court 467), the Honorable Supreme Court of Pakistan has held that counsel making genuine efforts to be present but unable to appear on account of his being busy before another court in circumstances of the case was a sufficient ground for setting aside order of dismissal in default.

9. In view of the principles laid down in the aforementioned case law, in the instant case the same ground in addition to absence of counsel could also be made applicable where, on the same premises, a party or a witness could not appear in the court when the matter was fixed for recording of evidence which right was closed due to non-appearance for the reason that said party or witness had to appear before another court, which in the instant case is the Peshawar High Court, a distant place from Lahore Cantonment, where the learned Additional Rent Controller was holding the court. Therefore, it should be treated as a sufficient cause for non-appearance of the petitioner and his counsel in the court on 25.03.2026 when the evidence was closed. Consequently, it would be appropriate to set aside the order of closure of evidence and grant another opportunity to the petitioner to produce his witnesses in evidence and for the purpose of cross-examination upon them, which is further strengthened by the fact that two of the witnesses were available in the court on 25.03.2026, but neither their statement was recorded nor they were cross-examined without disclosing any reason for the same in the impugned order rather the right to produce evidence has been closed. In view thereof the impugned order dated 25.03.2026 is **set aside** with direction that the learned Additional Rent Controller shall fix a date by providing one opportunity only to the

petitioner for production of his witnesses for the purpose of cross-examination and the petitioner shall be bound to do the needful. It is further observed that while recording petitioner's evidence and passing final decision in the matter unnecessary adjournments shall not be granted.

10. As only a short question of law and facts was involved, this order has been passed while dispensing with the notice to the respondent No. 2, as the same would have caused unnecessary delay in the matter which is lingering on for many years and would also have incurred unnecessary expenses to the said respondent, however if the said respondent is not agreed with the aforesaid arrangement, she may file an application for rehearing of the instant matter for its decision on its own merits in accordance with law.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed*

APPROVED FOR REPORTING: